

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): TELEPHONE NO.: _____ FAX NO. (Optional): _____ EMAIL ADDRESS (Optional): _____ ATTORNEY FOR (Name): _____	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN DIEGO ☐ CENTRAL DIVISION, CENTRAL COURTHOUSE, 1100 UNION ST., SAN DIEGO, CA 92101 ☐ EAST COUNTY DIVISION, 250 E. MAIN ST., EL CAJON, CA 92020 ☐ NORTH COUNTY DIVISION, 325 S. MELROSE DR., VISTA, CA 92081 ☐ SOUTH COUNTY DIVISION, 500 3RD AVE., CHULA VISTA, CA 91910	
PLAINTIFF PEOPLE OF THE STATE OF CALIFORNIA	
PETITIONER	
PETITION FOR SEALING OF ARREST RECORDS AFTER SUCCESSFUL COMPLETION OF PEN. CODE § 851.90 DIVERSION OR DEFERRED ENTRY OF JUDGMENT	SUPERIOR COURT CASE NUMBER _____ PROSECUTING AGENCY NUMBER _____

TO THE CLERK OF THE ABOVE-ENTITLED COURT, AND TO THE PROSECUTING AGENCY LISTED BELOW:

Petitioner requests that the court order the sealing of the following San Diego County arrest records and associated court records pursuant to Pen. Code §§ 851.90 & 851.92:

PROSECUTING AGENCY (REQUIRED)	ARRESTING AGENCY(IES) (REQUIRED)	AGENCY CASE OR POLICE REPORT # (IF KNOWN)	BOOKING # (IF KNOWN)	DATE OF ARREST (REQUIRED)	CHARGE(S) (REQUIRED)

Petitioner states he/she is eligible for relief because:

- Petitioner successfully completed a drug diversion program or deferred entry of judgment program, pursuant to Pen. Code §§ 1000, 1000.5, or 1000.8.
- Petitioner's case was dismissed on _____.

Waiver of appearance (optional):

- ☐ Petitioner understands there is a right to personally attend any hearing held in the matter. Petitioner gives up that right and authorizes the matter to be heard without petitioner's appearance.

Petitioner's verification:

- I have read this petition and know the contents. All factual assertions in this petition are based on my own knowledge and I believe them to be true. I therefore verify the petition. I further declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____ at _____, by _____
(City, State)Signature of Petitioner

Date: _____ by _____
Attorney for Petitioner

PETITIONER	CASE NUMBER
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TO BE COMPLETED BY THE PROSECUTING AGENCY:

- ☐ The People agree that petitioner is eligible for the requested relief. No hearing is requested.
- ☐ The People allege petitioner is not eligible for the requested relief pursuant to Pen. Code § 851.90 because:
- ☐ Petitioner has not successfully completed a drug diversion program or deferred entry of judgment program.
- ☐ Other: _____.
- ☐ The People oppose the requested relief. The People request this matter be calendared for a hearing and that petitioner notice all law enforcement agencies involved in the arrest.

Date: _____ by _____
District Attorney / City Attorney / Attorney General

TO BE COMPLETED BY THE COURT:

NOTICE OF HEARING: Petition will be heard on _____ at _____ in Dept. _____.

Clerk of the Superior Court

Date: _____ by _____, Deputy

Distribution by: _____ on _____ to ☐ Prosecutor ☐ Petitioner